

5. 9:00 AM CASE NUMBER: MSC20-01888

CASE NAME: BROWN VS. OUTREACH

*HEARING ON MOTION IN RE: ORDER FINDING ITS SETTLEMENT WITH DOUGLAS BROWN AND GLENDA BROWN TO BE IN GOOD FAITH

FILED BY: GENERATIONS CHURCH OF PLEASANT HILL

TENTATIVE RULING:

Unopposed by Outreach or any other interested party. **Motion granted.** The settlement between Plaintiffs Brown and Cross-Defendant Generations Church of Pleasant Hill was in “good faith” pursuant to CCP 877.6 and *Tech-Bilt v. Woodward Clyde* (1985) 38 Cal.3d 488. All claims included in the complaint (Browns v. Outreach) and the cross-complaint (Outreach v. Generations) are hereby **dismissed**.

6. 9:00 AM CASE NUMBER: MSC21-00076

CASE NAME: VALDIVA VS. AYALA

*HEARING ON MOTION IN RE: ENTRY OF FINAL JUDGEMENT

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Adriana Valdivia’s Motion for Entry of Final Judgment (“Motion”).

Plaintiff’s Motion is **denied** for the reasons set forth below.

Background Procedure

Plaintiff filed the original complaint for partition and related claims on January 15, 2021. The Court held a bench trial in June 2023, with an additional hearing on October 11, 2023. Thereafter, on January 12, 2024, the Court issued an Interlocutory Judgment. The Interlocutory Judgment indicated, in relevant part, that Plaintiff was entitled to partition of the real property located at 935 Kilkenny Way, Pinole, CA (the “Property”). The Court determined that the manner of partition would be determined after Plaintiff and Defendant had an “opportunity to meet and confer with each other as to whether Defendant will purchase Plaintiff’s interest or whether the property will be ordered sold on the open market.”

On February 29, 2024, Defendant filed a notice of appeal. The Court of Appeal affirmed the Court’s Interlocutory Judgment. The Petition to the California Supreme Court was denied. A remittitur was issued on September 16, 2025.

Plaintiff now moves for a Final Judgment to be entered even though the Property has not been sold, nor has a procedure for selling the Property been finalized. Defendant opposes the Motion as being premature.

Analysis

“A judgment is the final determination of the rights of the parties in an action or proceeding.” (Code of Civ. Proc. § 577.) “The general test for determining whether the judgment is final is ‘that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on

the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.” (*Bakewell v. Bakewell* (1942) 21 Cal.2d 224, 227 quoting *Lyon v. Goss* (1942) 19 Cal.2d 659.)

“It is well established that there can be but one judgment in an action as between the same parties and that is a judgment which determines all matters in controversy between them in the action.” (*Pastor v. Younis* (1965) 238 Cal.App.2d 259, 264.)

The Proposed Final Judgment submitted by Plaintiff does not meet the standards for a final judgment. There are several issues left unresolved and which would still require Court action. For example, the proposed final judgment notes that if the parties cannot agree on a Realtor to list and sell the Property that the Court shall appoint a Realtor upon ex parte application. (¶ 2.) Elsewhere, it notes that if the parties refuse to sign certain documents that the Court should “appoint an elisor” to sign on their behalf. (¶¶ 9, 10.)

The Proposed Final Judgment does not represent a “final determination of the rights of the parties,” but instead appears to be a proposed roadmap for proceeding with the sale of the Property which will ultimately result in a final judgment once the Property is sold and the assets are available for distribution.

Actions for partition are governed by extensive procedures set out in Code of Civil Procedure section 872.010, et seq. “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property.” (Code Civ. Pro., §872.720(a).) Once that judgment is entered, further determinations must be made through additional interlocutory judgments, including whether to physically divide the property or achieve partition through sale (Code Civ. Pro. § 872.820, *Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 597), and appointment a referee or a receiver to administer the sale of the property. (Code Civ. Pro., §873.010.)

While this Court’s Interlocutory Judgment determined the interests of the parties, it did not determine the method of partition. It indicated that the “manner of partition” would be determined after the parties had an opportunity “to meet and confer with each other as to whether Defendant will purchase Plaintiff’s interest or whether the property will be ordered sold on the open market....”

Based on the papers, it appears clear that the Parties cannot agree on a procedure for moving forward. It is clear, however, that no real efforts have been made toward Defendant purchasing Plaintiff’s interest in the Property. As such the Court agrees that this matter should move swiftly toward the sale of the Property so the case can be resolved in its entirety and a final judgment issue. As such, the Court is inclined to appoint a referee to proceed with the sale of the Property.

The Court notes that there is a CMC scheduled for April 15, 2026. The Parties and the Court can discuss the additional steps and procedures for efficiently selling the Property and resolving this matter at that CMC. The Parties should meet and confer beforehand to determine if they can agree to a referee. If not, the Court will move forward with appointing one.

Conclusion

Plaintiff’s Motion for Entry of Final Judgment is **denied**. The parties should be prepared to discuss the procedures for moving forward with the sale at the CMC.